

25STCV30184 25STCV30184

County: los-angeles

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Case Number: 25STCV30184 Hearing Date: August 7, 2026 Dept: 510

No.

10 - Reginald Snowden v. Veolia Water Contract Operation USA Inc., et al.

Defendant

Veolia Water Contract Operation USA Inc.'s Demurrer to Plaintiff's Complaint

Defendant

Veolia Water Contract Operation USA Inc. demurs to Reginald Snowden's complaint. The complaint alleges causes of action for violation of Plaintiff's right of publicity (Civil Code § 3344); common law misappropriation of likeness; and unfair competition.

Evidentiary

Objections

Plaintiff makes three evidentiary objections to Defendant's evidence submitted in support of its demurrer. All three objections are sustained.

Release

Agreement

Defendant

argues that Plaintiff's causes of action fail because he cannot adequately plead the element of "lack of consent." For support, Defendant points to a Release Agreement Plaintiff allegedly signed that shows Plaintiff provided written consent and authorizes Defendant to use his image. Even though the Release Agreement is not mentioned in the complaint, nor attached as an exhibit to it,

Defendant urges the Court to consider its contents. Specifically, Defendant argues that the Court may consider it because Plaintiff incorporated the release agreement by reference when he discussed “consent” in his complaint.

The

Court is not convinced. The Court is limited to the contents of the complaint and any judicially noticeable documents when ruling on a demurrer. General demurrers can be used only to challenge defects that appear on the face of the pleading or from matters outside the pleading that are judicially noticeable; evidence or extrinsic matters are not considered. (Code of Civ. Proc. §§ 430.30, 430.70; *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

In

addition, the incorporation by reference doctrine has no application here. In the complaint, Plaintiff does not reference the Release Agreement at all. Plaintiff specifically alleges that there was no consent. Plaintiff alleges “VEOLIA and DOES did not obtain Plaintiff’s consent before using Plaintiff’s picture/likeness in the above, or any, marketing and advertising materials. . . . At no time did Plaintiff provide consent, written or otherwise, for VEOLIA and DOES to use Plaintiff’s photograph or likeness in any marketing or advertising materials.” (Compl., ¶¶ 16, 19.) The Court does not find that Plaintiff’s mere use of the word “consent” in his complaint meaningfully guides the reader to any document.

Therefore,

the face of the complaint does not show that Plaintiff’s claims are barred by a release agreement.

Disposition

Defendant

Veolia Water Contract Operation USA Inc.’s demurrer to Plaintiff’s complaint is overruled. The Court hereby orders Defendant to file its answer within 21 days.